

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, January 27, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23922 against Police Officer Kyle Calenda, Tax Registry No. 963426. The case was conferenced on January 17, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B), forfeiture of TEN (10) vacation days.



Executive Director
New York City Civilian Complaint Review Board



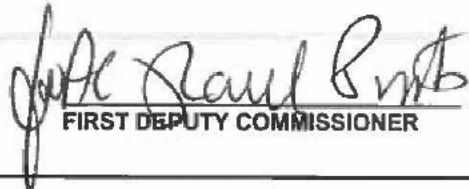
DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23922
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, CALENDA	FIRST KYLE	M.I. M	COMMAND CHIEF OF DEPARTMENT
SHIELD NO. 5856	TAX REGISTRY NO. 963426	SOCIAL SECURITY NO.	DATE APPOINTED 04/12/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Kyle Calenda, on or about May 29, 2020, at approximately 1934, while assigned to C A B and on duty, in the vicinity of Barclays Center, Kings County, wrongfully used force, in that he struck § 87(2)(b) with an asp without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

 3/3/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

 6/12/23
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 3, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23922 against Police Officer Kyle Calenda, Tax #963426, for the Dismissal of Charges and Specifications and the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days, I concur. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**



Edward A. Caban
FIRST DEPUTY COMMISSIONER

EAC/mcs

APPROVED



JUN 12 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER